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Is California really about to ban Skittles?

March 20, 2023 | San Francisco Chronicle: Web Edition Articles (CA)
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OpenURL Link

A proposed California bill could force popular candies like Skittles to change their recipes — or stop selling them in California altogether.

In February, Assemblymember Jesse Gabriel introduced Assembly Bill 418, which would prohibit the manufacture, sale and distribution of food products containing five chemicals linked to cancer and other health risks. One of these chemicals is titanium dioxide, which is listed as an ingredient in Skittles on the candy brand's website.

Last July, a lawsuit filed in California alleged that Skittles are "unfit for human consumption" because they contain titanium dioxide; however, the lawsuit was dismissed in November. In 2016, parent company Mars Inc. promised to phase out the chemical from its candies. Mars Inc. did not return SFGATE's request for comment in time for publication.

"Californians shouldn't have to worry that the food they buy in their neighborhood grocery store might be full of dangerous additives or toxic chemicals," said Assemblymember Gabriel in a press release. "This bill will correct for a concerning lack of federal oversight and help protect our kids, public health, and the safety of our food supply."

Last week, a group of food and beverage manufacturers and distributors wrote a letter to the California Assembly Committee on Health opposing the bill, as first reported by the Daily Mail. Eleven organizations, including the Consumer Brands Association, the National Confectioners Association and the California Grocers Association, signed the letter.

"All five of these additives have been thoroughly reviewed by the federal and state systems and many international scientific bodies and continue to be deemed safe," read the letter obtained by SFGATE.

The letter argued that the bill "usurps the comprehensive food safety and approval system for these five additives and predetermines ongoing evaluations."

"We're aware of the opposition letter and believe that the lack of meaningful arguments, data, and evidence actually strengthen the case for our legislation," said Assemblymember Gabriel in a statement to SFGATE.

Gabriel told the Daily Mail he believes that if the bill is passed, companies would choose to change ingredients instead of abandoning the California market, stating, "It is unlikely they'll have one recipe in California and one in Oklahoma."

The bill would need to be considered by an Assembly committee before advancing to the full chamber for a vote. It would then need to be approved by the state Senate and signed by Gov. Gavin Newsom to become law.

In simpler terms, there's a long way to go before it could possibly become law, and even if it does, it's not immediately clear that consumers of Skittles and other products would lose access.

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- **Citation (apa Style)**
  Wells, M. (2023, March 20). Is California really about to ban Skittles?*San Francisco Chronicle: Web Edition Articles (CA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/19064935DC6247F8.